

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN.
(JUDICIAL DEPARTMENT)**

Murder Reference No.96/2019.

Criminal Appeal No.1065-J/2019
Imran vs The State

Criminal Appeal No.691/2019
Hasnain vs The State

JUDGMENT

DATE OF HEARING: 28.09.2022.

APPELLANTS BY: Malik Muhammad Saleem and Muhammad Usman
Sharif Khosa, Advocates.

STATE BY: Mr. Muhammad Ali Shahab, Deputy Prosecutor
General.

COMPLAINANT BY: Qazi Saddam-ud-Din, Advocate.

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MUHAMMAD AMJAD RAFIQ, J:- Imran, Hasnain, Abdul Rasheed and Abdul Latif faced trial before learned Judge Model Criminal Trial Court/Additional Sessions Judge, Dera Ghazi Khan, in case FIR No.155 dated 26.05.2018 under sections 302/324/34 PPC registered at police station Kala, District Dera Ghazi Khan and on conclusion of trial vide judgment dated 11.07.2019, Abdul Rasheed and Abdul Latif accused were acquitted by extending them the benefit of doubt, whereas, Imran and Hasnain (accused/appellants) were convicted and sentenced as given below:-

Imran (appellant)

Convicted under section 302(b) PPC as Ta'zir read with section 34 PPC and sentenced to death; He shall be hanged by neck till he is dead. He is also directed to pay Rs.400,000/- as compensation under section 544-A(2) Cr.P.C. to the legal heirs of deceased Ameer Muhammad. In case of default, to further undergo simple imprisonment for six months.

Convicted under section 324 PPC for causing injury upon the back of injured Muhammad Anwar and sentenced to rigorous imprisonment for seven years and fine of Rs.20,000/-, in default to further undergo two months' simple

imprisonment.

Hasnain (appellant).

Convicted under section 302(b) PPC as Ta'zir read with section 34 PPC and sentenced to imprisonment for life; also ordered to pay Rs.400,000/- as compensation under section 544-A (2) Cr.P.C. to the legal heirs of deceased Ameer Muhammad. In case of default, to further undergo simple imprisonment for six months.

Convicted under section 324 PPC for causing injury upon the back of injured Muhammad Anwar and sentenced to rigorous imprisonment for seven years and fine of Rs.20,000/-, in default to further undergo two months' simple imprisonment.

Imran and Hasnain accused/appellants have assailed their above conviction/sentence through independent Criminal Appeal Nos.1065/2019 and 691/2019, whereas, Murder Reference No.96/2019 has been sent by the learned trial court with regard to confirmation of death sentence of Imran accused. All these matters are being taken up for decision through the instant judgment.

2. The prosecution case in brief is that on 26.05.2018 at 9.30 p.m. Ameer Muhammad was busy in gossip with Muhammad Anwar his relative at his home stead near main gate when Abdul Rasheed and Muhammad Imran (appellant) armed with Kalashnikov on one motorcycle while Hasnain (appellant) armed with Kalashnikov with one unknown on other motorcycle were found standing in front of them asking to face consequences for supporting Nadir s/o Yamin who had an altercation with Imran appellant same night; Ameer Muhammad tried to rise up when Muhammad Imran (appellant) made three fire-shots consecutively in a flow upon him which hit on the left thigh; Hasnain too took part by firing two fire shots which hit on right thigh of Ameer Muhammad; Intervention by Muhammad Anwar felt bad who too was targeted by a fire on his back at the hands of Hasnain, appellant. Both the injured were taken to the hospital through Rescue 1122 Emergency Service. Crime tragedy was based on motive spelled out through reprimand of Muhammad Imran, appellant by Ameer Muhammad for the reasons cited above.

3. First responder in this case was Javid Abass ASI, Police Station Kala who had his first stop at Trauma Center D.G. Khan where he attended both the injured produced by the complainant; their injury statements Exh. PJ/I & PL

were prepared and directed them to medical officer concerned for the purpose of obtaining medicolegal reports (MLR). He then proceeded to and arrived at the place of occurrence for the purpose of securing crime scene and framed the spot recoveries like blood-stained earth through memo Exh. PD and six bullet-casings through memos PE & PF which found at two places as five and one. He also prepared rough site plan Exh. PP. Investigation of the case was entrusted to Abdul Ghaffar Sub Inspector who took energy saver (source of light) into possession through recovery memo Exh. PH. Injured Ameer Muhammad and Muhammad Anwar were medically examined at 1:50 a.m. & 2:00 a.m. on the same night respectively; their MLRs Exh. PJ & PN were obtained. Later early in the morning at 5:45 a.m. Ameer Muhammad breathed his last; an application for postmortem examination Exh. PL and inquest report Exh. PM was drafted by Abdul Ghaffar SI; dead body was sent for postmortem through Abdul Rasheed Constable and received postmortem report Exh. PK along with last worn clothes of deceased which were taken into possession through memo Exh. PQ; recorded the statement of witnesses, got prepared scaled site plan Exh. PG. On 03.06.2018, he arrested both the appellants who during investigation got recovered weapons of offence which were secured through recovery memos Exh. PB & PC. Unknown accused was also nominated as Abdul Latif. Finding all four accused involved in commission of offence, report u/s 173 Cr.P.C. was submitted to the court. Charged was framed, to which they pleaded not guilty and claimed to be tried.

4. Prosecution ocular account was launched through Muhammad Sajjad complainant PW-1 & Muhammad Anwar injured PW-2; medical evidence was furnished by Dr. Zarnab Lashari PW-8; investigation including recoveries was supported by Javed Abbas ASI PW-9 & Abdul Ghaffar SI PW-11. Though prosecution has produced 12 witnesses in support of charge yet all other witnesses were almost formal in nature who deposed about respective functions performed by them. After close of prosecution evidence, stance and clarification of accused were sought on prosecution evidence produced against them during the trial; they deposed nothing in their statements u/s 342 Cr.P.C. except their false implication, they also did not appear as their own witness u/s 340(2) Cr.P.C. Thus, trial ended in acquittal of Abdul Rasheed and Abdul Latif accused and conviction of accused/appellants in the terms as forecited.

5. Learned counsels for the appellants clinched their stance in piecemeal presentation giving different options to the court one after another for creating a space to fit in innocence of the appellants. Such submissions ranged from scene of crime to conclusion of investigation and boxes were (i) absence of witnesses, (ii) suspicion on dispatch of injured to hospital and recording of his statement u/s 161 Cr.P.C. (iv) dispatch of bullet-casings to PFSA after arrest of accused (v) source of light (vi) different memos sans names of accused, finally wrapped the case of prosecution as bundle of lies dwindling in dark finding scape goats like appellants who had no motive at all.

6. Other side led by learned Deputy Prosecutor General and complainant's counsel laid much stress on the statement of injured witness whose presence was also admitted during cross examination and source of light energy saver/bulb was not controversial as kept under attack by the defence. Slackness of investigator to send bullet-casings late cannot defuse the veracity of weapons' recovery and house of deceased is cited in the site plan as a support to prosecution case theory. Murder and injury on trivial issue has serious repercussions which could be prevented through severe sentences.

7. Proponents' zeal with oratory for evidence explanation and resounding response for contra view was attended with circumspection, record examined, evidence reappraised.

8. It is an admitted position that no enmity whatsoever existed between the parties so as to tag the appellants unnecessarily or falsely for a capital charge; motive evidence was not adduced in support of crime tragedy because neither Nadeem maternal nephew of complainant appeared as witness nor the court was asked to summon him despite the fact he was living in the house of deceased. Therefore, with this vacuum when the deposition of witnesses for ocular account was reappraised, it made us cautious to look for inter se support and independent corroboration. Complainant Muhammad Sajjad PW-1 primarily while stating roles of both the appellants supported the prosecution narrative including time, date and place of occurrence, although when faced cross examination deposed certain facts which the defence claimed as in their favour. He deposed that *"It is correct that there is no mention of house of Ameer Muhammad deceased and Anwar injured PW in rough site plan"* but as

a matter-of-fact house of Ameer Muhammad deceased is reflected not only in rough site plan Exh. PP but one prepared by the draftsman Exh. PG. therefore, stating against the record does not create any dent in the deposition. At another place complainant stated that *“It is incorrect to suggest that I along with Nazar Hussain PW reached at the place of occurrence when the accused persons fled away towards western side on their motorcycle” (confronted with Ex.PA where it is so recorded). It was mentioned in Ex. PA as follows:*

اور جملہ ملزمان جانب غرب فرار ہو گئے میں معہ نذر حسین بہنوئی ام موقع پر گئے

Such confrontation is out of record and being misinterpreted; particularly when he was witnessing the occurrence from a distance of 10 Karam in the light of bulb as per site plans and on leaving by accused/appellants within his view he dared to step forward to attend the injured, and it is in line with phrase cited above. He while responding to a question stated that *“it is correct that during investigation it is came (sic) on the record that Rasheed accused took the injured to hospital on his own car”* Defence claimed it a serious dent in prosecution case which rules out the presence of complainant at the spot, but the complainant in other breath deposed that *“volunteered that we did not record such statement to the police”*. Therefore, claim of defence of taking injured by Abdul Rasheed accused from the place of occurrence falls to the ground and story of picking the injured by Ambulance 1122 midway from the car of Rasheed accused to the Hospital may not find a buyer, simply due to the reason that it is then difficult to shift the injured in such critical condition and no employees of such ambulance service were produced to depose about this fact.

9. Complainant stated that only injured Ameer was shifted on 1122 Service to the hospital; he admitted it correct that Anwar injured was not attended by Rescue 1122 and he went to hospital on a private car. Such fact was also deposed by Anwar Injured PW-2 in following words:-

“I was shifted to the hospital in the car owned by Aziz Musrani by caste and Ameer Muhammad was not with me at that time. Aziz Musrani is not my relative.....

.....
He was called by the complainant through cell phone in order to shift me to DHQ Hospital, D.G. Khan. Ameer injured was already shifted from place of occurrence through 1122 Service”

The claim of defence that why both the injured were not shifted to hospital together, which creates doubt about presence of injured PW at the spot, is weakened from the nature of injury on the person of Muhammad Anwar which was explained by the doctor during cross examination as under: -

“Injury No. 1 on the body of Muhammad Anwar was kissing/ superficial injury and its margins were irregular and not inverted”

When there was simple injury that need not require immediate attention comparing to one serious at the person of Ameer Muhammad, justification for not immediately sending Muhammad Anwar to hospital seems plausible and does not cast any doubt on the presence of Muhammad Anwar particularly when doctor has not observed any fabrication in his injury nor it was disputed in essence; even otherwise it is not expected to select a boy of 13 years (as per MLR) to fabricate an injury of like nature and at the locale. Therefore, separate dispatching of injured has no negative bearing or adverse impact on prosecution case.

10. Recording of statement of Muhammad Anwar Injured PW-2 by the police was seriously taken as ground to discard his evidence with the stance that Injured claimed his statement was recorded by Javed Abbas ASI PW-9 whereas in the police record his statement was recorded by Abdul Ghaffar SI PW-11. During his cross-examination Javed Abbas ASI PW-9 denied recording of statement of injured Anwar and injured also did not name him as the man who recorded his statement rather says in the opening lines of his cross examination that *“police recorded my statement on the night of occurrence. Complainant Sajjad was also present at that time. He already lodged FIR of this case prior to recording of my statement”*. At another place he replied that *“then my statement was recorded by the I.O in my presence”*

11. This case was taken up by Javed Abbas ASI on receiving information who then was not assigned the duty to investigate, his role at the most was of first responder to the crime scene and as per section 157 Cr. P.C. certain functions he performed at the place of occurrence till the entrustment of investigation to Abdul Ghaffar SI. What a first responder is required to do at the place of cooccurrence or further though is a focused science which is being attended by all the investigators pursuant to international best practices yet legislative support in ordinary cases in this respect is scanty in our criminal

justice system. We have tracked the role of a first responder in our legislative framework which was found by us in subordinate legislation like Police Rules, 1934, as under:-

Rule: 25.10. Immediate dispatch of an officer to the spot: - When a report of a cognizable case is recorded and it is decided not to dispense with investigation under Section 157(b), Criminal Procedure Code, a police officer shall proceed to the scene immediately. **The officer who first proceeds to the spot shall, if he be not competent to complete the investigation,** take all possible steps to preserve the scene of the crime from disturbance, to record particulars of and secure the presence of potential witnesses, obtain information relating to the case and arrest the culprit.

Above Rule authorizes that first responder can perform number of functions at the site like (1) to preserve the scene of crime from disturbance; which means to secure the spot recoveries and draft the crime scene as it looked like at his first sight. (2) he can record particulars of and secure the presence of potential witnesses and obtain information relating to case; in this case witnesses were at hospital, therefore, he on receiving information reached there and recorded particulars of witnesses including injured. Certainly, in order to obtain information, he had talked to the said injured, as his injury statement was prepared by him which the witness can feel as recording of statement. (3) to arrest the culprit is also included in his functions if they are available near or around the place of occurrence within a time allocated for him until the regular investigator takes up and complete the investigation.

Such Rule is also in consonance with part of Police Rules, 1934 which is reflected below;

Rule: 25.1 (2). He is also empowered under Section 157(1), Criminal procedure Code, to depute a subordinate to proceed to the spot to investigate the facts and circumstances of the case, and if necessary, to take measures for the discovery and arrest of the offenders. Any police officer may be so deputed under this section, but where a police officer under the rank of assistant sub-inspector is deputed, the investigation shall invariably be taken up and completed by the officer in charge of the police station or an assistant sub- inspector at the first opportunity.

It has been observed that Javed Abbas ASI PW-9 had performed limited functions of securing the crime scene and spot recoveries lest it should not be destroyed till the arrival of investigating officer; he prepared rough site plan, prepared injury statements of both the injured and obtained information about the occurrence which is in consonance with above Rule 25.10.

12. The claim of defence that injured made statement to Javed Abbas PW-9 but in the record, it was shown recorded by Abdul Ghaffar SI PW-11 though has been responded above that he obtained the information about the occurrence, yet said examination has a cover of section 161 Cr.P.C. which says that a witness may be examined orally whereas under section 161(3) Cr.P.C. a statement so made may be reduced into writing which shows that reducing the statement into writing is optional but once the statement is reduced into writing it is mandatory to make a separate record of such statements, therefore, use of word 'may' in first part and 'shall' in second part of section 161 (3) Cr. P.C. is meaningful; for reference it is reproduced;

161. Examination of witnesses by police: (1) Any police-officer making an investigation under this Chapter or any police-officer not below such rank as the Provincial Government may, by general or special order, prescribe in this behalf, acting on the requisition of such officer may examine orally any person supposed to be acquainted with the facts and circumstances of the case.

(2) Such person shall be bound to answer all- questions relating to such case put to him by such officer, other than questions the answers to which would have a tendency to expose him to a criminal charge or to a penalty or forfeiture.

(3) The police officer may reduce into writing any statement made to him in the course of an examination under this section, and if he does so he shall make a separate record of the statement of each such person whose statement he records.

(Bold & underline supplied by us)

Law requires that when the witnesses are examined orally or their statements are reduced into writing, a brief note in the body of case diary is to be given by the investigating officer. The relevant part of Police Rules, 1934 in this respect is as follows;

25.18. Statement recorded under Section 161, Code of Criminal Procedure. - Statements recorded by an investigating officer under Section 161, Code of Criminal Procedure shall not form part of the case diary prescribed by Section 172, but shall be recorded separately and attached to the case diary, the necessary number of copies being made by the carbon copying process on case diary continuation sheets [form 25.54(1)]. The number of statements attached to a particular case diary, and the number of pages in each statement, shall be noted in the case diary. An investigating officer, after examining a person orally or recording a statement under section 161, Code of Criminal Procedure, shall make a brief note of the fact in his case diary.

From the facts, it appears that statement of Muhammad Anwar injured was not recorded by Javed Abbas ASI, PW-9 in this case and this fact is fortified from the deposition of Abdul Ghaffar SI PW-11 who stated like as under;

“I went through the prior investigation conducted by Javed Abbas ASI. Javed Abbas ASI had not recorded the statement of injured Anwar”

Abdul Ghaffar SI PW-11 claimed recording of statement of Muhammad Anwar injured but denied suggestion that such statement was recorded on 26.06.2018 and in support stated that case diary is of 26.05.2018. The controversy so claimed is set at naught, no doubt remains for recording of statement of injured Muhammad Anwar by Abdul Ghaffar SI (PW.11) whose presence at the spot was natural and deposition was confidence inspiring; even defence has not taken much head to explore this witness at length. When the statement of injured is confidence inspiring and the occurrence was viewed in sufficient light, it can safely be relied upon to be read against the appellants. Reliance is placed on the case reported as “NASIR alias NASIREE and another versus The STATE and another” (2021 SCMR 1614).

13. PW-1 & PW-2 in their examination in chief have also mentioned the presence of bulb (as mentioned in the FIR) at the time of occurrence; their presence was not seriously disputed by the defence nor made any attempt to shatter it rather some suggestion about their presence were put to them by the defence which can safely be read against the accused/appellants; during cross examination of PW-1 following response was received from him:-

Dead body of deceased was lying at a distance of 5/6 feet from the gate. Muhammad Anwar injured was standing at a distance of 7/8 feet from the gate

Question asked from Muhammad Anwar Injured PW-2 was responded as under: -

“I was sitting in the gate when the fire hit at me. The distance between pulli and gate is 2/3 feet”

While disputing source of light defence has also put following question: -

*“It is correct that bulb and energy saver are two different items
.....*

It is correct that I have not filed any application for the correction of bulb instead of energy saver”

It was the desperation of defence that bulb and energy saver are two different things and much time was taken to argue this point before us, yet by implication admitted that source of light was available. Defence had also disputed that why source light (energy saver) was not taken into possession by Javed Abbas ASI PW-9 at the time of his first visit despite the fact that he collected bullet-casings at the spot. As discussed above what required from a first responder was rendered by him and taking the energy saver in to possession by another investigator does not diminish its efficacy when no evidence was brought on record that house of occurrence was not wired for using electricity. Accused/appellants were also known to both the witnesses who had also stated about the distance of houses of accused/appellants during cross examination. Reference is made to statement of Muhammad Anwar PW-2 who too went on to say that Imran appellant is resident of one bigha from his house whereas Hasnain accused/appellant was residing at a distance of 6/7 kilometer from the place of occurrence. In such circumstances, PWs have proved their presence at the relevant time and viewed the occurrence with their own eyes at the place of occurrence, therefore, their testimonies are consistent and confidence inspiring. Reliance is placed on the case reported as “GUL ZARIN and others versus KAMAL-UD-DIN and others” (2022 SCMR 1085). Claim of defence that in the recovery memos against the word “*Banam*” the names of accused is not mentioned is simply discarded that it is not a rule of thumb to write the name of accused in such memos when no particular format has been suggested for this purpose in any law or the Police Rules, 1934.

14. Medical of evidence in this case is line with respect to locale, nature and probable time and duration of injuries on the person of both the injured. Blackening was observed by the doctor in the injury of Muhammad Anwar which stands corroborated from inter se distance between assailants and the victim which fact came out during cross examination of injured and more clearly from explanatory evidence in the form of site plan which was recorded as ½ karam. There was no deliberate delay in examination of both the injured; similarly, postmortem examination was also prompt because Ameer Muhammad was examined in an injured condition at 1:40 a.m. whereas he died after 4 hours at 5:45 a.m. in the morning and his body being in the hospital was

dispatched to the mortuary where his postmortem was conducted at 8:00 a.m. by Dr. Zarnab Lashari PW-8 who observed the injuries on both thighs and declared it caused with firearm weapon resulting into death of Ameer Muhammad; defence has also failed to point out any serious flaw in this kind of evidence which is supportive to the ocular account, therefore, can be relied upon. Reliance is placed on the case “NOOR ZAMAN versus The STATE” (2022 SCMR 1002).

15. Both the appellants were arrested on 03.06.2018 by Abdul Ghaffar SI, PW-11; recovery of weapon of offence was effected from them on 11.06.2016; both Kalashnikovs P1 and P2 were sent to PFSA and six crime empties were found wedded with the Kalashnikov recovered from Imran appellant. Yet it is inconsequential in the sense that bullet-casings were sent to PFSA after arrest of the accused/appellants, yet fact of recovery of weapon of offence was also not seriously objected by the defence.

16. For what has been discussed above, we are of firm view that prosecution has been successful in establishing the guilt against the accused/appellants beyond reasonable shadow of doubt. However, while considering the quantum of sentence we have noted certain factors reacted as mitigating for alteration of death sentence to imprisonment for life for Imran appellant. Prosecution has failed to prove the motive in this case, therefore, this is not the case of capital sentence. Reliance is placed on the case “ABDUL WASAY and others versus The STATE and others” (2021 SCMR 1059). Moreover, recovery of weapon of offence and positive PFSA report is inconsequential as bullet-casings were sent to the Lab after arrest of the accused and the injuries being cause of death of Ameer Muhammad were attributed to both the appellants, therefore, Imran appellant is not solely responsible for such act. Keeping in view the above factors, the conviction of Imran and Hasnain appellants for *qatl-i-amd* of Ameer Muhammad is upheld along with sentence awarded to Hasnain, whereas, sentence of death awarded to Imran by the learned trial court is altered to imprisonment for life. Guidance is sought from the judgment of Hon’ble Supreme Court of Pakistan in the case “Muhammad Riaz and another v. The State and another” (2007 SCMR 1413) and “Muhammad Sharif v. The State” (PLD 2009 Supreme Court 709), wherein, the Hon'ble Supreme Court of

Pakistan has held that the imprisonment for life is also a legal sentence in the case of section 302(b), P.P.C. However, compensation and sentence in default shall remain intact. All the sentences awarded to appellants shall run concurrently. Benefit of section 382 Cr. P.C shall be available to both the appellants. Both the appeals are dismissed with above modifications. Record of the learned trial Court be sent back and case property, if any, be disposed of as directed by the learned trial Court in the impugned judgment.

Murder reference is answered in negative.

Sentence of death is not confirmed

(Sadiq Mahmud Khurram)
Judge.

(Muhammad Amjad Rafiq)
Judge.

Approved for reporting

(Sadiq Mahmud Khurram)
Judge.

(Muhammad Amjad Rafiq)
Judge.

Javed*